

STATE OF NEW YORK

7853--A

2025-2026 Regular Sessions

IN SENATE

May 9, 2025

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the village law and the public officers law, in relation to qualifications to hold the position of assistant village engineer in the village of Croton-on-Hudson

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 3-300 of the village law is amended by adding a new
2 subdivision 36 to read as follows:

3 36. Notwithstanding any provisions of this chapter or any other chap-
4 ter, general law, local law, ordinance, or special act, the village
5 board of trustees of the village of Croton-on-Hudson, Westchester coun-
6 ty, may, by resolution, provide that the office of assistant village
7 engineer of such village may be held by a person who is not a resident
8 of such village, provided that such person resides within Westchester
9 county, an adjoining county within the state of New York, or within
10 Dutchess county.

11 § 2. Section 3 of the public officers law is amended by adding a new
12 subdivision 76 to read as follows:

13 76. In the village of Croton-on-Hudson, Westchester county, the
14 provisions of this section requiring a person to be a resident of the
15 political subdivision or municipal corporation of the state for which
16 they shall be chosen or within which their official functions are
17 required to be exercised, shall not prevent a person from holding the
18 office of assistant village engineer, provided that such person resides
19 within Westchester county, an adjoining county within the state of New
20 York, or within Dutchess county. Provided, however that persons perform-
21 ing the functions of such appointed positions in any other municipality
22 shall be a resident of such municipality unless otherwise provided by an
23 act of the state legislature.

24 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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